

BEFORE THE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG GB DLLBT

STIPULATION AND ORDER

IN THE MATTER OF THE APPLICATION FOR A LICENSE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO
OF JEAN MARIE MANTHEI, M.A., CAC II

Applicant,

IT IS HEREBY STIPULATED and agreed by and between the Board of Licensed Professional Counselor Examiners ("Board") and Jean Marie Manthei, M.A., CAC II ("applicant"), as follows:

1. The Board has jurisdiction over the person of applicant and the subject matter set forth in this stipulation and order.

2. Ms. Manthei applied for a license to practice professional counseling in Colorado on July 6, 1998. Applicant has met the educational requirements for licensure and completed the required examination with a passing score, therefore she is eligible for licensure as a Licensed Professional Counselor. Applicant desires to obtain a license to practice professional counseling in Colorado.

3. The Board authorized its legal counsel, the Colorado Attorney General, to prepare this stipulation and order with the intention that applicant be licensed to practice professional counseling in the State of Colorado under the terms of this stipulation and order.

4. Applicant understands that she has the right to a hearing with respect to her application for a professional counselors license. Applicant further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing on the necessity for limiting practice to treatment of substance abuse clients as part of and in the employment of an approved substance abuse treatment program, with continued mental health treatment, and practice monitoring; gives up her right to present oral and documentary evidence; and gives up her right to cross-examine witnesses. Applicant understands that she has the right to appeal the Board's final order to the Court of Appeals. Applicant further

understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise contest the validity of the final Board order entered pursuant to this stipulation.

5. The Board orders that applicant be licensed as a Licensed Professional Counselor with her practice of professional counseling restricted to treatment of substance abuse clients as part of and in the employment of an approved substance abuse treatment program. Applicant shall continue her current mental health treatment on an ongoing basis as a condition of licensure. Applicant's practice of professional counseling shall be monitored by her clinical supervisor ("practice monitor") for a period of three years, commencing on the date this stipulation and order is fully executed. During the period of practice monitoring applicant can practice professional counseling only if she complies with all conditions of this stipulation and order and has a practice monitor in place. Should applicant seek to change the scope of her practice in order to provide professional counseling to clients other than substance abuse clients as part of a substance abuse treatment program she may request the Board to consider such a change and provide appropriate recommendations from her clinical supervisor and therapist.

6. The requirements of this stipulation and order are:

a. Applicant's practice of professional counseling will be restricted to treatment of substance abuse clients as part of and in the employment of an approved substance abuse treatment program.

b. Applicant shall continue her current mental health treatment in the same manner and to at least the same level as she had at the time of application and evaluation for licensure.

c. Applicant's practice of professional counseling shall be monitored by her clinical supervisor who serves as her practice monitor and both monitors her practice of professional counseling and reports in writing to the Board.

d. The practice monitoring shall be conducted as follows:

(i) The monitoring shall involve direct, regular contact between applicant and her supervisor that occurs at such frequency and for such length of time as the supervisor deems necessary, but at least one hour for every twenty hours of client contact and at least once a month. Applicant and her

supervisor must review and discuss each of applicant's active cases on a regular basis, which the supervisor determines appropriate and necessary for the supervisor to determine whether applicant is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(ii) The supervisor shall observe applicant in her work with clients to the extent the supervisor deems appropriate and necessary to determine whether applicant is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with skill and safety for her clients.

(iii) The supervisor shall maintain such personnel records as are deemed appropriate by the supervisor or kept in the normal course of employee evaluation. Such personnel records shall be sufficient to reflect whether applicant is appropriately treating clients in accordance with her training and experience and according to generally-accepted standards of practice and with skill and safety for her clients.

(iv) The supervisor shall report to the Board, in writing, as to whether the applicant is practicing professional counseling in accordance with generally accepted standards of practice and with skill and safety for her clients. The first report shall be submitted by the fifth day of the month following the first full month of applicant's employment or the first full month after the license is issued subject to this stipulation. The supervisor shall submit subsequent reports on the fifth day of each third month thereafter (i.e., on a quarterly basis).

(v) If the supervisor is of the opinion that applicant is not practicing professional counseling in accordance with generally-accepted standards of practice or with skill and safety for her clients, s/he shall take appropriate employment action and shall report the opinion and the basis for that opinion as well as any action affecting applicant's employment to the Board. Any such report shall be made in writing within 48 hours of forming her/his opinion. The supervisor shall send a copy of the report to the applicant when s/he sends the report to the Board. Should the Board receive such a report, applicant shall immediately cease the practice of professional counseling.

e. Applicant cannot supervise or consult with other persons for the purpose of those other persons providing psychotherapy unless applicant's supervision or consultation is supervised by applicant's practice monitor in accordance with paragraph 6d.

f. Applicant, not the Board is responsible for all costs or expenses incurred for practice monitoring, mental health treatment, or any other actions necessary to fulfill the requirements of this stipulation and order.

g. Applicant shall take reasonable steps to assure that her practice monitor reports to the Board as required by this stipulation and order.

h. Applicant agrees that she will provide or allow her practice monitor or mental health providers to provide medical or psychological records or information to the Board in the event the practice monitor or a mental health provider determines that she is not practicing professional counseling in accordance with generally accepted standards of practice or has a physical or mental condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care. As part of this stipulation and order applicant explicitly waives her right to maintain confidentiality of medical and psychological records and information provided to her practice monitor or a mental health provider if the practice monitor or a mental health provider determines that she is not practicing professional counseling in accordance with generally accepted standards of practice or has a physical or mental condition which renders her unable to treat clients with reasonable skill and safety or which may endanger the health or safety of persons under her care.

7. All time periods and obligations regarding practice monitoring stated in this order run only while applicant is engaged in the practice of professional counseling in Colorado under the monitoring of a practice monitor, they are tolled and suspended at all other times.

8. If applicant discontinues the practice of professional counseling she shall notify the Board in writing within thirty (30) days of ceasing practice. This notice shall include the date she ceased practice and her new address if she has moved.

9. In the event applicant subsequently resumes her practice of professional counseling in Colorado, she shall notify the Board in writing prior to resuming practice in Colorado.

Such notice shall include her address and the date on which she intends to resume practice.

10. As used in this stipulation and order, the terms "professional counseling", "practice of professional counseling", "professional counseling practice", and "engaged in the practice of professional counseling" shall have the same meaning and scope as the term "professional counseling" as defined in C.R.S. §12-43-601(5).

11. No agreement, understanding, representation, or interpretation not contained in this order may be used to vary or to contradict its terms.

12. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

13. Each provision of this order is separate. In the event of litigation involving compliance with the terms of this order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the order; and the parties will be obligated by the judicially-construed parts of the order as if they were part of the original order.

14. This stipulation and order shall take effect on acceptance and signature by the Board.

15. This stipulation and order is a public record.

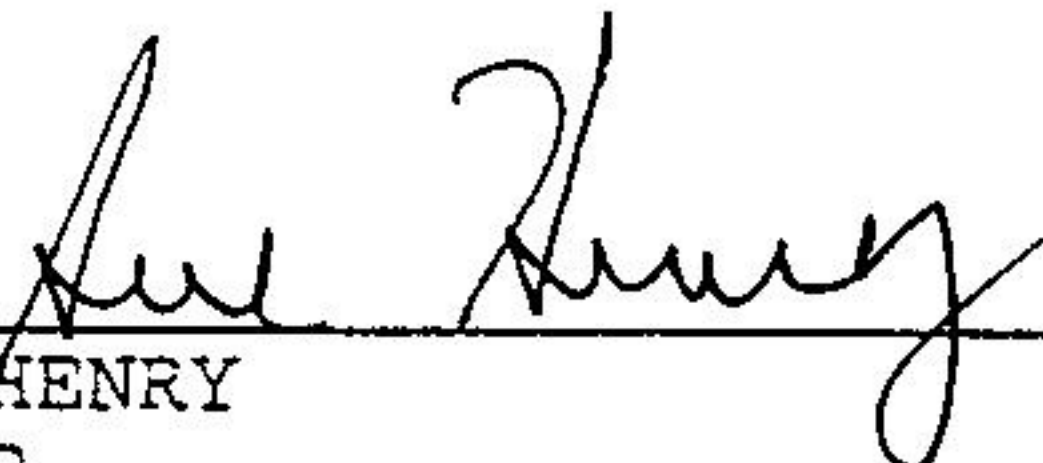
Jean-Marie Manthei
JEAN MARIE MANTHEI, M.A.
Applicant

DATED:

April 30, 1999

ACCEPTED, SIGNED, AND ORDERED this 7th day of May,
1999.

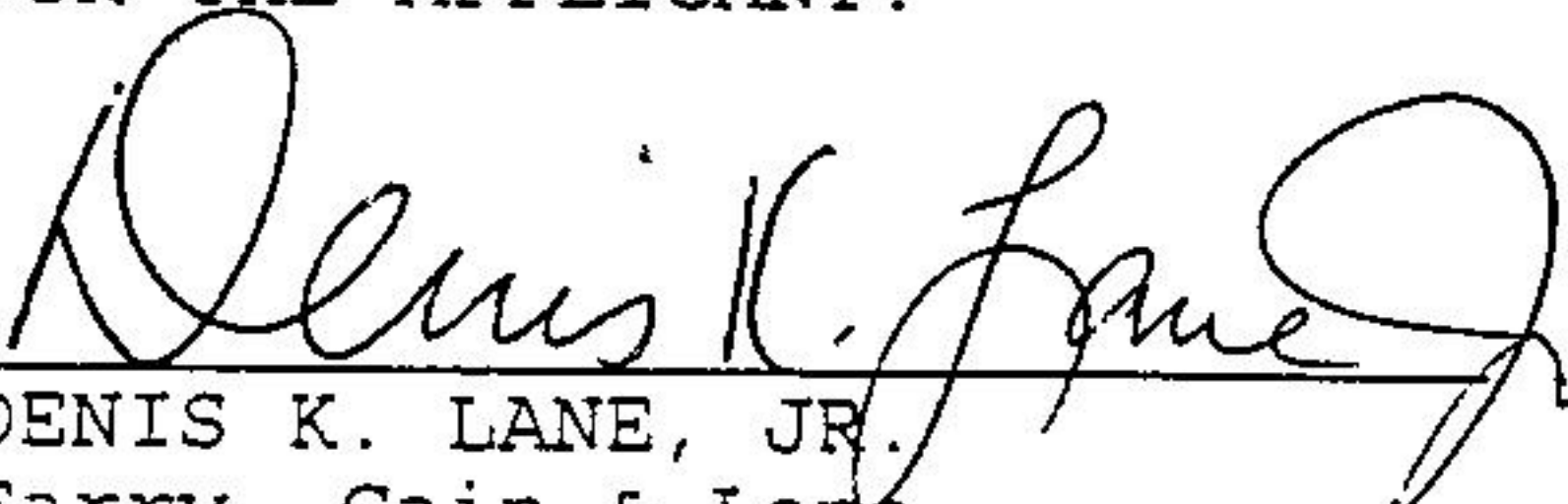
STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



SUE HENRY
CHAIR

APPROVED AS TO FORM

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